

The board considered that this lack of information was clearly at odds with the stated intention of paying the appeal fee on filing notice of appeal. The deficiency had at any rate been readily identifiable as both the accompanying letter and the notice of appeal had contained very little information.

4.2.3 Electronic filing of documents

Under decision of the President of the EPO dated 14 May 2021 (OJ 2021, A42), electronic filing of documents is admissible in opposition and appeal proceedings. There are numerous cases which deal with electronic filing of appeals before this became permissible (see, with regard to the principle of legitimate expectation, T 781/04 of 30 November 2005 T 991/04 of 22 November 2005 and T 331/08; see also T 1633/18, in which the board considered that a notice of appeal and a further letter filed via the EPO Web-Form Filing service were validly filed).

In T 1764/08, the appellant filed its statement setting out the grounds of appeal via *epoline*® on the very last day of the period specified in Art. 108, third sentence, EPC. The board held that, even if the EPO had warned the appellant, the warning would not have allowed the appellant to re-file the statement of grounds of appeal by an acceptable means within said period. Therefore, under the principle of good faith, there was no duty on the part of the EPO to warn the appellant. To that extent, the case in hand differed from cases T 781/04, T 991/04 of 22 November 2005, T 514/05 and T 395/07, where the deficiency could have been identified in good time before the expiry of the relevant period.

4.2.4 Further examples involving easily identifiable deficiencies

In T 460/95 of 16 July 1996 the board found that in the case in hand the irregularity was obvious and easy to identify, and the appellant could easily have put it right during the time remaining. The registrar, when he received the request for an extension, could and indeed should have seen that it was based on a misunderstanding during a telephone conversation.

The principle of legitimate expectations was applied in J 11/89 where the Receiving Section failed to take any particular action upon the receipt of patent documents intended to be considered as priority documents, but whose priority was not claimed in the request for grant.

4.3. Limits of the obligation to draw attention to easily remediable deficiencies

4.3.1 Area of party's own responsibility

The case law demonstrates that the principle of good faith does not impose an obligation to warn a party of deficiencies within the area of the party's own responsibility (G 2/97, OJ 1999, 123; see inter alia J 41/92, OJ 1995, 93; J 4/96; T 690/93; T 161/96, OJ 1999, 331; T 778/00, OJ 2001, 554; T 267/08; R 4/09; T 578/14). The reason for this is that users of the European patent system, who are parties in proceedings before the

EPO must act in good faith, and have the responsibility to take all necessary procedural actions to avoid a loss of rights (G. 2/97, R. 4/09).

a) Filing of valid appeal

The Enlarged Board of Appeal held in G. 2/97 that the appellant's responsibility for fulfilling the conditions of an admissible appeal could not be devolved to the board. There can be no legitimate expectation on the part of users of the European patent system that a board will issue warnings with respect to deficiencies in meeting such responsibilities. To take the principle of good faith that far would imply that the boards would have to systematically assume the responsibilities of the parties to proceedings before them, a proposition for which there was no legal justification in the EPC or in general principles of law.

In T. 703/19 the board held that, although it was the appellant's own responsibility actually to pay the appeal fee, the same did not necessarily go for all related aspects of the process. Were that so, the Enlarged Board would not have concluded in G. 2/97 that, in the hypothetical example given there, the board ought to have drawn the appellant's attention to a missing cheque. In the board's view, the point of that example had instead been to illustrate a situation where a clearly identifiable intention to perform a procedural act on filing notice of appeal (payment of the appeal fee) was at odds with what had actually been done and this discrepancy was readily identifiable.

In T. 267/08 the board made it clear that it was under no obligation to warn a party of deficiencies in the filing of an authorisation; rather, the party itself had the responsibility to take all necessary steps to avoid a loss of rights. Responsibility for filing a valid authorisation could not be devolved to the board.

b) Filing of divisional application

In J. 2/08 (OJ 2010, 100), the appellant (applicant) contended that the EPO had violated the principle of good faith on several occasions (omission to inform in respect of filing a divisional application; publication of the divisional application; late noting of loss of right). In his view, by taking no action the EPO induced the appellant into believing that everything was in good order with the divisional application, until it became too late to file an appeal against the decision refusing the parent application. In the board's view it was exclusively the responsibility of the applicant and his representative to decide on the factually and legally most appropriate filing actions to be taken. Furthermore no legitimate expectations concerning the validity of an application may be based on the fact that an application has been published. Finally, the communication under R. 69 EPC 1973 (R. 112 EPC), which is not just a warning but a procedural act, had to be sent after the end of the appeal period.

c) Bank account information

The board in T. 1029/00 decided that the appellant could hardly cite the lack of bank account information on EPO correspondence as the reason for making an incorrect cash payment. Applicants had to ascertain such bank account information for themselves.

4.3.2 No obligation to scrutinise submissions for deficiencies

J 7/97 concerned an application filed with the EPO by fax. One page of the description was missing, whilst another was transmitted twice. The board took the view that a single page missing from a lengthy description was not an "obvious error" under the case law, at least in the circumstances of this particular case. The applicant could not in good faith expect the EPO to check application documents for completeness on the very day it received them. Nor could any such obligation be inferred from the President's decision on fax transmissions (OJ 1992, 299), in which Art. 3 (now Art. 6, decision of the President of the EPO of 20 February 2019, OJ 2019, A18) required the filing office to notify the sender as soon as possible "where a document transmitted ... is illegible or incomplete"; the latter adjective clearly referred to the transmission rather than the actual document.

In T 585/08 the board found that the deficiency in the request for re-establishment (insufficient statement of grounds and facts, R 136(2) EPC) had not been readily identifiable. First, a number of letters had been filed, and second, it would only have been possible to detect the deficiency if these letters had been studied carefully. In the board's view, the principle of good faith did not impose any obligation on the EPO to scrutinise several letters on file to establish whether grounds and facts with respect to a request for re-establishment were missing. The board distinguished this case from T 14/89 (OJ 1990, 432) in which the lack of substantiation of the request for re-establishment had been readily identifiable.

5. Obligation to enquire in case of unclear nature of request

In J 15/92 the Legal Board held that in the case of a request whose true nature was uncertain (here it was unclear whether it was a request for re-establishment or a request for a decision), the EPO should clarify the matter by asking the requester. It would have been sufficient in the case in hand for the EPO to invite the applicant to define his request more precisely. For the EPO to interpret the request arbitrarily constituted an error rendering the impugned decision null and void (see also J 25/92, J 17/04).

In J 6/08 the board added that a request (for a decision or re-establishment) filed with a view to obtaining the redressal of a loss of rights within the meaning of R 69(1) EPC 1973 (R 112(1) EPC) had to be interpreted by the EPO in the light of the requester's objectively discernible will and taking account of the particular circumstances of the case. In case of doubt the Office is obliged to establish what the requester really wanted and may also be obliged to point out any still outstanding procedural steps in connection with this request (in this case, observance of the period of one year under Art. 122(2) EPC 1973, now R 136(1) EPC).

Though not expressly relying on the principle of legitimate expectation, the Enlarged Board of Appeal held in R 14/10 that in cases where a request of a party during oral proceedings was considered unclear, it was the duty of the deciding body to ask for clarification before deliberation. However, if the requests as read out before the debate was declared closed did not correspond to the petitioner's intention, it was the petitioner's duty to intervene at that point.

6. Legitimate expectation and case law

There might be cases in which the public has a legitimate expectation that the department of first instance will not deviate from the **established case law** which has become enshrined in the consistent practice of the department of first instance (see J 27/94, OJ 1995, 831). A **single decision** of a board of appeal cannot, however, create a legitimate expectation that it will be followed in future (J 25/95, T 500/00). The users' confidence in the continuity of a practice based on a decision of the Enlarged Board might be considered particularly legitimate since all boards of appeal were expected to follow the Enlarged Board's interpretation of the EPC (J 25/95).

6.1. Case law deviating from or overruling the practice

In J 27/94 (OJ 1995, 831) the board stated that there might be cases in which the public had a legitimate expectation that the department of first instance would not deviate from the established case law. This might apply if the relevant case law had become enshrined in the consistent practice of the department of first instance, and in particular if this had been made known to the public in published Guidelines, legal advice or notices from the EPO. In such a situation, an applicant might legitimately expect that a practice allowing or even recommending a particular way of proceeding would not be changed without appropriate advance information. In the case in hand, the board held that the department of first instance was therefore not obliged by the principle of the protection of legitimate expectations, on the basis of decision J 11/91 (OJ 1994, 28), to allow the filing of a divisional application after the approval of the text intended for grant until opinion G 10/92 (OJ 1994, 633) was made available to the public.

In J 25/95 the board stressed that the publication of J 11/91 in the Official Journal of the EPO (OJ 1994, 28) as well as in the publication "Case Law of the Boards of Appeal of the EPO" did not create a legitimate and reasonable expectation that a divisional application could be filed up until the decision to grant. If there was any doubt whether the established practice in this respect existed, it was up to the appellants to seek clarification by means of an enquiry to the EPO which would have revealed quickly that the department of first instance did not apply J 11/91.

In T 740/98 the appellant submitted that the disclaimer had been allowed by the examining division in conformity with the Guidelines for Examination (1994 version) and the then established case law of the boards of appeal. Consequently the standards set out in the subsequent decision G 1/03 (OJ 2004, 413) could not be applied, since this would offend against the principle of good faith and the protection of the legitimate expectations of the users of the EPO. The board noted that the legal system established under the EPC did not treat either the Guidelines or established case law as binding. Thus, any principle of protection of legitimate expectations could not be based on earlier Guidelines or case law. The board held that the standards set out in G 1/03 were applicable to the case. In T 500/00 the board added that what counted was not whether the opposition division had acted in accordance with the Guidelines, but whether it had acted in accordance with the EPC. The principle of good faith could not be invoked against the application of principles concerning the allowability of disclaimers laid down in G 1/03 to pending cases.

6.2. Point in time from which a new decision which deviates from existing practice becomes generally applicable

In three decisions the Enlarged Board of Appeal reached the conclusion that these decisions overturning earlier rulings would not be applied up to the date on which they were made available to the public (G 5/88, OJ 1991, 137, concerning an administrative agreement; G 5/93, OJ 1994, 447, concerning the possibility for Euro-PCT applicants to have their rights re-established with regard to the time limit for paying the national fee provided for in R 104b EPC 1973; and G 9/93, OJ 1994, 891, holding that a European patent cannot be opposed by its own proprietor, thereby overturning G 1/84). These three decisions do not, however, form the basis of a general rule that new case law must never be applied "retrospectively" (J 8/00).

In T 716/91 the board came to the conclusion that G 4/93 (corresponding to G 9/92, OJ 1994, 875) had also to be applied to pending cases. The situation in the case in hand was not analogous to the situation in G 9/93, where the Enlarged Board of Appeal had held that it was inequitable to apply the law as interpreted in G 9/93 to pending cases. The board pointed out that G 4/93 did not contain any indication limiting the applicability of the law as interpreted therein to pending cases.

In T 739/05, the board saw no reason to suspend the further prosecution and the final decision of the case until a decision of the Enlarged Board of Appeal was issued on an important point of law which might have been of importance for the case under consideration. The board held that the decision of the Enlarged Board of Appeal could not affect the outcome of the case because of the principle of the protection of legitimate expectations relating to pending cases. Where existing long-standing practice laid down in publications of the EPO is overruled by a new decision, consistent case law (G 5/93, G 9/93, T 905/90, J 27/94, J 25/95) allows the applicants of pending cases a transitional period during which they may rely on the previous practice until the modifying decision is made available to the public.

Decision G 2/08 (OJ 2010, 456) stated that in order to ensure legal certainty and to protect legitimate interests of applicants, the interpretation of the law given by the Enlarged Board in this decision should have no retroactive effect, and an appropriate time limit of three months after publication of the present decision in the Official Journal of the EPO was set in order for future applications to comply with this new situation. On the same grounds, in G 3/19 (OJ 2020, A119 – see point XXIX of the Reasons) the Enlarged Board specified that the new interpretation of Art. 53(b) EPC given in the opinion had no retroactive effect on European patents containing the claims of the type at issue which were granted before 1 July 2017 (when R 28(2) EPC entered into force) or on pending European patent applications seeking protection for such claims which were filed before that date.

In G 2/07 and G 1/08 (OJ 2012, 130 and 206) the Enlarged Board of Appeal held that, in the past, it had granted a transitional period in cases in which its decision had brought about a change in relation to an established procedural practice, which change the parties could not be expected to foresee. By contrast, the existence of "legitimate expectations"